



INDIAN POLITY

SESSIONS OF PARLIAMENT

MODULE – 65



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SESSIONS OF PARLIAMENT

SUMMONING

1 The president from time to time summons each House of Parliament to meet.

2 But, the maximum gap between two sessions of Parliament cannot be more than six months.

3 In other words, the Parliament should meet at least twice a year. There are usually three sessions in a year:

- The Budget Session
- The Monsoon Session and
- The Winter Session.

4 A 'session' of Parliament is the period spanning between the first sitting of a House and its prorogation (or dissolution in the case of the Lok Sabha).

5 During a session, the House meets everyday to transact business.

6 The period spanning between the prorogation of a House and its reassembly in a new session is called 'recess'.

1st sitting

"SESSION"

Prorogue

"RECESS"

Reassembly

ADJOURNMENT

- 1 A session of Parliament consists of many meetings.
- 2 Each meeting of a day consists of two sittings, that is, a morning sitting from 11 am to 1 pm and post-lunch sitting from 2 pm to 6 pm.
- 3 A sitting of Parliament can be terminated by adjournment or adjournment sine die or prorogation or dissolution (in the case of the LS).
- 4 An adjournment suspends the work in a sitting for a specified time, which may be hours, days or weeks.

ADJOURNMENT SINE DIE

- 1 Adjournment sine die means terminating a sitting of Parliament for an indefinite period.
- 2 In other words, when the House is adjourned without naming a day for reassembly, it is called adjournment sine die.
- 3 The power of adjournment as well as adjournment sine die lies with the presiding officer of the House.
- 4 He can also call a sitting of the House before the date or time to which it has been adjourned or at any time after the House has been adjourned sine die.

SESSIONS OF PARLIAMENT

PROROGATION

ADJOURNMENT	PROROGATION
It only terminates a sitting and not a session of the House.	It not only terminates a sitting but also a session of the House.
It is done by presiding officer of the House.	It is done by the president of India.
It does not affect the bills or any other business pending before the House and the same can be resumed when the House meets again.	It also does not affect the bills or any other business pending before the House. However, all pending notices (other than those for introducing bills) lapse on prorogation and fresh notices have to be given for the next session.

- 1 The presiding officer (Speaker or Chairman) declares the House adjourned sine die, when the business of a session is completed.
- 2 Within the next few days, the **President issues a notification for prorogation of the session.**
- 3 However, the President can also prorogue the House while in session.

SESSIONS OF PARLIAMENT

DISSOLUTION

1 Rajya Sabha, being a permanent House, is not subject to dissolution. Only the Lok Sabha is subject to dissolution.

2 Unlike a prorogation, a dissolution ends the very life of the existing House, and a new House is constituted after general elections are held.

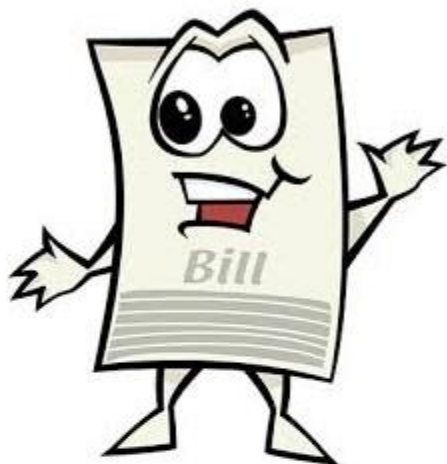
3 The dissolution of the Lok Sabha may take place in either of two ways:

- **Automatic dissolution**, that is, on the expiry of its tenure of five years or the terms as extended during a national emergency or
- **Whenever the President decides to dissolve the House**, which he is authorised to do.

Once the Lok Sabha is dissolved before the completion of its normal tenure, the dissolution is irrevocable.

SESSIONS OF PARLIAMENT

DISSOLUTION



QUESTION TO PONDER:

Why do most of the bills lapse upon dissolution of the House?

- 4 When the Lok Sabha is dissolved, **all** business including bills, motions, resolutions, notices, petitions and so on pending before it or its committees lapse.
- 5 They (to be pursued further) must be reintroduced in the newly-constituted Lok Sabha.
- 6 However, some pending bills and all pending assurances that are to be examined by the **Committee on Government Assurances** do not lapse on the dissolution of the Lok Sabha.

DISSOLUTION

7

The position with respect to lapsing of bills is as follows:

- 1) A bill pending in the Lok Sabha lapses (whether originating in the Lok Sabha or transmitted to it by the Rajya Sabha).
- 2) A bill passed by the Lok Sabha but pending in the Rajya Sabha lapses.
- 3) A bill not passed by the two Houses due to disagreement and if the **President has notified the holding of a joint sitting** before the dissolution of Lok Sabha, does not lapse.
- 4) A bill **pending in the Rajya Sabha** but not passed by the Lok Sabha does not lapse.
- 5) A bill passed by both Houses but **pending assent of the President** does not lapse.
- 6) A bill passed by both Houses but **returned by the President for reconsideration** of Houses does not lapse.

SESSIONS OF PARLIAMENT

QUORUM

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- 1** Quorum is the minimum number of members required to be present in the House before it can transact any business.
- 2** It is **one-tenth of the total number of members** in each House including the presiding officer.
- 3** It means that there must **be at least 55 members present in the Lok Sabha and 25 members present in the Rajya Sabha**, if any business is to be conducted.
- 4** If there is no quorum during a meeting of the House, it is the duty of the presiding officer either to **adjourn the House or to suspend the meeting until there is a quorum.**

SESSIONS OF PARLIAMENT

VOTING IN HOUSE

- 1 All matters are decided by a majority of votes of the members present and voting, excluding the presiding officer.



AYES	126
NOES	325
ABST	000
TOTAL	451
TIME	:00

On the conclusion of a debate, the Speaker shall put the question and invite those who are in favour of the motion to say 'Aye' and those against the motion to say 'No'.

- 2 Only a few matters, which are specifically mentioned in the Constitution like impeachment of the President, amendment of the Constitution, removal of the presiding officers of the Parliament and so on, require special majority, not ordinary majority.
- 3 The presiding officer of a House does not vote in the first instance, but exercises a casting vote in the case of an equality of votes.

SESSIONS OF PARLIAMENT

LANGUAGE IN PARLIAMENT



Headphones are used for simultaneous translations.

- 1 The Constitution has declared **Hindi and English** to be the languages for transacting business in the Parliament.
- 2 However, the presiding officer can permit a member to **address the House in his mother-tongue**.
- 3 In both the Houses, **arrangements are made for simultaneous translation**.
- 4 Though English was to be discontinued as a floor language after the expiration of fifteen years from the commencement of the Constitution (that is, in 1965), **the Official Languages Act (1963)** allowed English to be continued along with Hindi.

RIGHTS OF MINISTERS AND ATTORNEY GENERAL

- 1 In addition to the members of a House, every minister and the Attorney General of India have the right to speak and take part in the proceedings of either House, any joint sitting of both the Houses and any committee of Parliament of which he is a member, without being entitled to vote.

LAME-DUCK SESSION

- 1 It refers to the last session of the existing Lok Sabha, after a new Lok Sabha has been elected.
- 2 Those members of the existing Lok Sabha who could not get re-elected to the new Lok Sabha are called lame-ducks.

DEVICES OF PARLIAMENTARY PROCEEDINGS

QUESTION HOUR

1 The **first hour of every parliamentary sitting** is slotted for this.

2 During this time, the members ask questions and the ministers usually give answers.

3 The questions are of three kinds, namely,

- **Starred questions,**
- **Unstarred questions and**
- **Short notice.**

4 A **starred** question (distinguished by an asterisk) requires an **oral** answer and hence **supplementary questions** can follow.

5 An **unstarred** question, on the other hand, requires a **written** answer and hence, supplementary questions cannot follow.

6 A **short notice** question is one that is asked by giving a notice of **less than ten days**. It is answered **orally**.

DEVICES OF PARLIAMENTARY PROCEEDINGS

QUESTION HOUR

7 In addition to the ministers, the questions can also be asked to the **private members**.

8 Thus, a question may be addressed to a private member if the subject matter of the question relates to some Bill, resolution or other matter connected with the business of the House for which that member is responsible.

9 The procedure in regard to such question is the same as that followed in the case of questions addressed to a minister.

10 The list of starred, unstarred, short notice questions and questions to private members are printed in **green, white, light pink and yellow colour**, respectively, to distinguish them from one another.

DEVICES OF PARLIAMENTARY PROCEEDINGS

ZERO HOUR



- 1 Unlike the question hour, the zero hour is **not mentioned in the Rules of Procedure.**

- 2 Thus it is an **informal device** available to the members of the Parliament to raise matters **without any prior notice.**
- 3 The zero hour starts **immediately after the question hour** and lasts until the agenda for the day (ie, regular business of the House) is taken up.
- 4 In other words, the time gap between the question hour and the agenda is known as zero hour.
- 5 It is an Indian innovation in the field of parliamentary procedures and has **been in existence since 1962.**

DEVICES OF PARLIAMENTARY PROCEEDINGS

Match List-I with List-II and select correct answer by using the codes given below the lists.

LIST – I	LIST – II
a) Short duration discussion	1. 1964
b) Calling attention notice	2. 1962
c) Zero Hour	3. 1953
d) Committee on Public Undertakings	4. 1954

Codes

A

B

C

D

(a)

4

3

1

2

(b)

3

4

2

1

(c)

4

2

1

3

(d)

3

2

4

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